

## 23BBCV01082 23BBCV01082

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 23BBCV01082 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Enforce Lien

Hearing Date: 8/7/26

CASE NO./NAME: 23BBCV01082 / Hoxha v.

Zavala

Moving Party: Lien Claimant Sirius America

Insurance Co.

Responding Party: Plaintiff Artan Hoxha

(joined by Defendant Omar C. Zavala)

Notice: Sufficient

Ruling: GRANT.

NOTICE

The Court is NOT requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at [email protected] or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

## BACKGROUND

On May 15, 2023, Plaintiff Artan Hoxha (“Plaintiff”) filed a complaint for negligence against Defendant Omar C. Zavala (“Defendant”) arising from a motor vehicle collision. Plaintiff alleged that Defendant rear-ended his vehicle and that Plaintiff suffered wage loss, hospital and medical expenses, general damage, and loss of earning capacity.

On March 11, 2025, Lien Claimant Sirius America Insurance Company (“Lien Claimant” or “Sirius”) filed its first notice of right to lien pursuant to Labor Code section 3856. Sirius is the worker’s compensation insurance carrier for Specialty Doors and Automation, Inc., the employer of Plaintiff. (See Hanassab Decl. ¶ 3, Exh. 1.)

On March 10, 2026, Plaintiff and Defendant settled the case for the “policy limits” of \$25,000 on the condition that the settlement includes Sirius’ lien claim. (Ibid.) Sirius now moves for an order enforcing its lien and for issuance of a writ of execution of its lien in the amount of “\$74,277.41 lien, less the common fund.” (Motion to Enforce Lien (“Mot.”) 3.)

On June 12, 2026, this court granted the motion in part and continued the matter as to the amount of Sirius’ lien and Plaintiff’s litigation expenses. (See 6/12/26 Minute Order.) The Court ordered the parties to present competent evidence for the court to determine this amount. (Ibid.)

## LEGAL

### STANDARD

Pursuant to California Labor Code section 3850, “[w]here the tort of a third party causes injury to an employee, ... section 3852 permits the employee to sue the tortfeasor for all damages proximately resulting from the injury even though he or she has received from an employer workers’ compensation benefits covering some of the same injuries and resulting disability.” (Abdala v. Aziz (1992) 3 Cal.App.4th 369, 374.) “To prevent an employee from

retaining both third party damages and workers' compensation benefits for the same injuries and disabilities, the Labor Code permits an employer to recover workers' compensation benefits it has become obligated to pay and/or has paid by (1) bringing an action directly against the tortfeasor (§ 3852), (2) joining as a party plaintiff or intervening in an action brought by the employee (§ 3853), or (3) allowing the employee to prosecute the action and then applying for a first lien against the resulting judgment or settlement. (§ 3856, subd. (b).)" (Id. at 374-375.) In this motion, Sirius has elected the third option pursuant to section 3856(b), which provides:

If the action is prosecuted by the employee alone, the court shall first order paid from any judgment for damages recovered the reasonable litigation expenses incurred in preparation and prosecution of such action, together with a reasonable attorney's fee which shall be based solely upon the services rendered by the employee's attorney in effecting recovery both for the benefit of the employee and the employer. After the payment of such expenses and attorney's fee the court shall, on application of the employer, allow as a first lien against the amount of such judgment for damages, the amount of the employer's expenditure for compensation together with any amounts to which he may be entitled as special damages under Section 3852.

(Labor Code §  
3856(b).).

## DISCUSSION

On June 12, 2026

the Court held that Sirius is entitled to a lien in the amount of the workers' compensation benefits it has paid to Plaintiff related to the motor vehicle accident at issue in this litigation less Plaintiff's reasonable litigation expenses and attorney fees. (6/12/26 Minute Order, p. 2.)

Sirius filed a

declaration on July 29, 2026, stating that their final lien amount is \$20,933.91. (Sandoval Decl., ¶ 4.) This reflects amounts paid in workers' compensation benefits. (Sandoval Decl., Exh. A.)

Plaintiff filed

a declaration on July 28, 2026, stating that they have incurred attorney's fees in the amount of \$10,000 pursuant to a contingency agreement and reasonable

litigation costs in the amount of \$976.86. (Hanassab Decl., ¶¶ 5-6.) The Court notes that Plaintiff did not attach a copy of said contingency agreement or a memorandum of costs to support the stated amounts. The Court will reduce attorneys' fees to reflect 30% of the \$25,000 settlement obtained. (Hanassab Decl., ¶ 5.) Thus, attorney's fees will total \$7,500. Moreover, the Court will reduce litigation costs to \$500.

Here, Sirius' final lien amount (\$20,933.91) minus Plaintiff's declares attorney's fees and costs (\$8,000) totals \$12,933.91. Thus, Sirius is entitled to a lien amount of \$12,933.91.

Accordingly, the motion is GRANTED.

CONCLUSION  
AND ORDER

Lien Claimant Sirius America Insurance Co.'s  
Motion to Enforce Lien is GRANTED.

MOVING PARTY is to give notice and provide  
a proposed order consistent with this ruling within 15 days from this date.